

2017 P L C (C.S) 507

[Lahore High Court]

Before Ayesha A. Malik and Jawad Hassan, JJ

ZOHAIB HASSAN----Petitioner

Versus

The INSPECTOR GENERAL OF PRISON and others----Respondents

I.C.A. No.1591 of 2016, heard on 12th January, 2017.

Civil service---

---Appointment against post of Assistant Superintendent Jail---Re-measurement of height of candidate---Concealment of facts---Effect---Appointment letter was issued in favour of petitioner subject to fitness report---Department refused to take joining of petitioner and petitioner filed constitutional petition against such refusal which was disposed of with the direction to the department to decide the application of petitioner---Petitioner was summoned for re-measurement of his height along with record but he filed yet another constitutional petition which was dismissed---Validity---Petitioner had concealed facts which could be taken into consideration---Previous wrong decisions on the basis of said concealment of facts could be curable at belated stage---Petitioner had remained unable to prove his case---Person could not have vested right for a post against which he did not fulfill the requirement/ criteria---No illegality had been pointed out in the impugned order passed by the Single Judge of High Court--
-Intra-court appeal was dismissed in circumstances.

Rai Muhammad Tofail Kharal for Appellant.

Ch. Sultan Mehmood, A.A.G. for Respondents.

Date of hearing: 12th January, 2017.

JUDGMENT

JAWAD HASSAN, J.--- Through this Intra Court Appeal, the Appellant has called in question the legality of the impugned order dated 03.11.2016 passed in W.P. No.34580/2016.

2. Precisely, the facts of the case are that the Appellant applied for the post of Assistant Superintendent Jail (BS-16) and was issued appointment letter jointly along with other 69 candidates. Thereafter, the Appellant submitted his fitness report on 04.01.2016 but the Respondent No.1 refused to take his joining and asked for re-measurement of his height against which the Appellant approached this Court by filing the W.P. No.4385/2016 which directed the authorities to ensure measurement of height through Electronic Device. When the grievance of

the Appellant was not redressed, he again filed the W.P. No.12643/2016 which was disposed of on 25.04.2016 with the direction to the Respondent No.5 to decide the application of the Appellant. In pursuance of which the Respondent No.5 directed the Respondent No.4 for re-measurement of Appellant's height who issued Medical OPD slip dated 15.09.2016 concluding the height as 174 cm. The Appellant was again refused to join his service despite the report of the Respondent No.4 which constrained the Appellant to file the W.P. No.31446/2016 which was disposed of on 07.10.2016 with the direction to the Respondent No.1 to decide the pending application of the Appellant who instead of deciding his application on 26.10.2016, summoned the appellant on 31.10.2016 and directed to appear before the I.G. Prisons for re-measurement of his height along with the complete record. Feeling aggrieved thereby the Appellant filed W.P. No.34580/2016 which was dismissed vide the impugned order. Hence, the instant appeal.

3. Notice was issued to the Respondents vide order dated 14.11.2016 and in pursuance of which parawise comments were filed on behalf of the Respondent No.1 denying the allegations levelled in the appeal and prayed for dismissal of the appeal.

4. Learned counsel for the Appellant submitted that the learned Single Judge has failed to appreciate the fact that after the report of Respondent No.4, the Respondent No.1 was bound to allow joining of the Appellant in service, rather constitution a Committee. Learned counsel also argued that the impugned order did not discuss the case of the Appellant and simply direction for deciding the application of the Appellant has been given to the Respondent No.1 despite the fact that all the supporting material was available in his favour. Learned counsel also contended that the act of the Respondent No.1 for constitution of the Committee to re-measure the height was illegal as under the orders of this Court, report of the Respondent No.4 was available in favour of the Appellant.

5. Learned Law Officer appeared on behalf of the Respondent No.1 and vehemently contested the arguments raised by the learned counsel for the Appellant and contended that personal hearing was afforded to the Appellant by the Respondent No.1 and thereafter a Committee was constituted comprising of AIG (Establishment), AIG (Industry) and Technical Officer Health which intended to re-measure the height of the Appellant and found that the Appellant has made concealment as he was not having genuine hair and hiding a pad in it. Learned Law Officer also argued that the Appellant slipped away from the Committee when he was asked to remove his artificial hair, as such the conduct/act of the Appellant was found to be fraudulent. Learned Law Officer informed that the height of the Petitioner namely Zohaib Husain measured by the Respondent No.4 (Medical Superintendent Ganga Ram Hospital) is not correct. Actually, the height of the Petitioner in question is 172 cm but due to the planting of a pad below his hair, it was raised up to 174 cm. The learned Law Officer also argued that the Appellant has not a vested right to be appointed on the seat against which he did not fulfill the qualification and prayed for dismissal of the Appeal.

6. We have heard the arguments of both the sides and minutely perused the record which shows that the main controversy in the case is that although the Appellant was issued appointment letter but the only hindrance comes in his way to join service was the requirement of height. After hectic litigation on this issue ultimately vide order dated 07.10.2016 in W.P. No.31446/2016 the Respondent No.1 was directed to decide the application of the Appellant.

Although the record does not show that the application of the Appellant has been decided by the Respondent No.1 yet parawise comments, in the W.P. No.31446/2016 filed on his behalf reveal that the Appellant was afforded personal hearing on 31.10.2016 and to resolve the controversy a Committee was constituted in which the Appellant was found to have concealed the fact of hiding pad in his hair and fled away to evade the consequence when he was asked to remove the same. The Appellant has failed to rebut the fact of concealment with cogent reasons. The parawise comments are against the version of the Appellant, therefore, apart from the fact whether the Respondent No.1 has decided the application of the Appellant or not, the comments can be considered to be the decision.

7. Furthermore, new fact of concealment has come on surface later which can be taken into consideration as the previous wrong decisions on the basis of said concealment can be curable at belated stage. Since the Appellant has failed to counter the version of concealment of fact raised by the Respondent No.1, therefore, remained unable to prove his case. It is a settled principle that a person cannot have the vested right for a seat against which he does not fulfil the requirement/criteria.

8. We see no illegality in the impugned order which only issued a direction to the Respondent No.1 to decide the pending application of the Appellant.

9. In view of above, in the instant appeal has no merit, consequently, the same is hereby dismissed.

ZC/Z-2/L

Appeal dismissed.

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